

PRIVACY POLICY

Provider: Affective Academy LLC, 7255 South Sheephorn Mountain, Littleton, CO 80127

Contact: privacy@theraduetoken.com **Version 4.0** · **Effective** [In Progress as of 08/08/2026] **Supersedes:** all prior versions

2.1 Scope

This Policy describes how Provider collects, uses, stores, and discloses information when Customer and its Authorized Users access the Service. Capitalized terms not defined here have the meanings in the Master Terms of Service.

Who this Policy is for. This Policy is written for school administrators, teachers, parents, guardians, and eligible students — not only for contracting parties. Parents and students may rely on it.

2.2 Information We Collect

2.2.1 Student Data (Education Records)

Data Element	Purpose
Student first name, last initial	Identify the recipient of recognition in the interface and in notifications
Student ID (district-assigned)	Match records to the district's system of record
Grade level	Group and filter reporting for teachers
Student email address	Deliver recognition notifications to the student
Parent/guardian email address	Deliver recognition notifications to the family
Token Event timestamp	Record when recognition occurred
Token Event type / category	Record what behavior was recognized
Awarding teacher user ID	Attribute the award and enable teacher-level reporting

Recognition Balance	Display current point total
Assigned form template ID	Determine which individualized recognition form the student receives; assigned by Customer's staff
Redemption records	Record what was redeemed and when, at Customer's school store
IP address	Security logging and abuse prevention
Device type / browser user-agent	Compatibility and troubleshooting

2.2.2 Educator and Administrator Data

Name, work email address, school and district affiliation, role, subject or grade assignment, authentication credentials, and access logs.

2.2.3 Operational Data

Page-load metrics, aggregated usage analytics, error logs, and support ticket contents.

2.2.4 What We Do Not Collect

Provider does not collect student disability status, IEP or 504 status, race, ethnicity, national origin, disciplinary records, academic grades, health information, biometric identifiers, or precise geolocation.

2.3 How We Use Information

- Deliver, maintain, secure, and improve the Service
- Deliver recognition notifications to students, families, and educators
- Provide dashboards and reports to authorized teachers and administrators
- Respond to support requests and troubleshoot
- Generate aggregated, de-identified analytics subject to § 1.11
- Comply with legal obligations

We do not sell Student Data, use it for targeted advertising, build non-educational profiles, or use it to train artificial-intelligence or machine-learning models.

2.4 Onward Transfers and Sub-Processors

Provider engages only the Sub-Processors listed in **Appendix B**, each bound by a written data processing agreement requiring confidentiality, no secondary use, and deletion obligations no less protective than this bundle. Provider remains **fully liable** for Sub-Processor acts and omissions.

Provider will give Customer at least **thirty (30) days' advance written notice** of any new Sub-Processor. Customer may **object in writing** within that period; if the objection cannot be resolved, Customer may terminate without penalty and receive a pro-rata refund.

2.5 Security Measures

- TLS 1.2+ encryption in transit; AES-256 encryption at rest via cloud-provider–managed keys
- Role-based access control with least-privilege provisioning
- Multi-factor authentication on all administrative and infrastructure accounts
- Unique per-person credentials; shared credentials prohibited
- **Least-privilege role design** — awarding teachers cannot view student totals or history (§ 1.12A)
- **No disability, health, or special-education status stored** (§ 1.12)
- Student recognition data visible only to the student, the student's parent or guardian, and Customer's designated staff
- All Student Data stored and processed in the **United States** (AWS US East / N. Virginia; MongoDB Atlas US region) — see § 2.10
- Written data processing agreements with every Sub-Processor
- Access logging and documented incident-response procedures
- Annual internal security review

Certifications in progress. SOC 2 certification and independent penetration testing. Provider's roadmap toward these is set out in **Appendix E**.

2.6 Parent and Eligible-Student Rights

Because Student Data is maintained on behalf of Customer, requests are directed **through Customer**, which holds the education records. Parents and eligible students may request **access, correction**, and — as directed by Customer and consistent with Customer's retention schedule — **deletion**. Provider will support Customer within **thirty (30) calendar days**.

Requests may be initiated through Customer's data-privacy office or by emailing **privacy@theraduetoken.com**, CC: **admin@theraduetoken.com** which Provider will route to Customer.

2.7 Data Retention and Deletion

See **Appendix C**. Summary: active-student records for the current academic year plus one month; withdrawn-student records purged after ninety (90) days; all Student Data purged within sixty (60) days of contract termination with a certificate of destruction furnished; backup media purged on the rolling backup cycle not to exceed 60 additional days.

2.8 Children's Privacy (Under 13)

Accounts for users under thirteen (13) are created **exclusively by verified educational institutions** acting as the parent's agent under the school-authorization exception to COPPA. See § 4 for the full statement. **There is no direct-to-consumer signup path.** Parents and students cannot create accounts independently; all student accounts are provisioned by the contracting educational institution and/or the provider.

2.9 Colorado Privacy Act Rights (Non-Student Data)

For personal data **not** governed by FERPA — including educator, administrator, and website-visitor data — Colorado residents have rights under the Colorado Privacy Act, C.R.S. § 6-1-1301 *et seq.*: to confirm processing and access; to correct; to delete; to obtain a portable copy; and to opt out of targeted advertising, sale, and profiling with legal or similarly significant effects.

Provider **honors universal opt-out mechanisms**, including Global Privacy Control signals.

Submit requests to **privacy@theraduetoken.com**. Provider responds within forty-five (45) days, extendable once by forty-five (45) days with notice. **If Provider declines a request, you may appeal** by replying to the decision or writing to privacy@theraduetoken.com; Provider will respond to appeals within forty-five (45) days and will inform you how to contact the Colorado Attorney General if the appeal is denied.

2.10 Data Location

All Student Data is stored in the United States. Primary hosting is Amazon Web Services **US East (N. Virginia), us-east-1**. The database is **MongoDB Atlas Cluster0, AWS / N. Virginia (us-east-1)**, MongoDB version 8.0.29, with backups enabled. Provider does not store or replicate Student Data outside the United States.

Personnel access disclosure. Provider engages **software development personnel located in India**. Production systems and all Student Data remain hosted in the United States and are not replicated abroad. Development personnel do not have access to production systems containing Student Data; where access is granted it is limited to the minimum necessary, logged, and time-bound or may be used for quality purposes. All development personnel are bound by written confidentiality and data protection agreements imposing the same restrictions that apply to Provider's members, and complete Provider's annual privacy and security training.

2.11 Changes to This Policy

Provider will notify Customer in writing at least **thirty (30) days** before any material change and will post the revised Policy with a new version number and effective date. Material changes affecting Student Data require Customer's **acknowledgment**. Prior versions remain available on request.